

WHY DO PEOPLE COMPLY WITH THE LAW?

*Legitimacy and the Influence of Legal Institutions*JONATHAN JACKSON*, BEN BRADFORD, MIKE HOUGH, ANDY MYHILL,
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This paper extends Tyler's procedural justice model of public compliance with the law. Analysing data from a national probability sample of adults in England and Wales, we present a new conceptualization of legitimacy based on not just the recognition of power, but also the justification of power. We find that people accept the police's right to dictate appropriate behaviour not only when they feel a duty to obey officers, but also when they believe that the institution acts according to a shared moral purpose with citizens. Highlighting a number of different routes by which institutions can influence citizen behaviour, our broader normative model provides a better framework for explaining why people are willing to comply with the law.

Keywords: public confidence, public contact with the police, trust, legitimacy, compliance, policing by consent

Introduction

Legitimacy depends on what Reiner (2000: 55) has called the mystical sense of an identification between the police and the British people. It depends on the myth that police and people share a single set of coherent and consistent norms and values, and that the police have a unique function in using force if necessary to impose them. (Smith 2007a: 280)

Legitimacy is the right to rule and the recognition by the ruled of that right (Sternberger 1968; Beetham 1991; Coicaud 2002; Tyler 2006a; Bottoms and Tankebe 2012). Social institutions need legitimacy if they are to develop, operate and reproduce themselves effectively (Easton 1965). This is as true for the police as it is for other institutions of government. But peculiar to the police function is the state-sponsored use of force, the resolution of conflict and the enforcement of legally prescribed conduct and rule following (Banton 1964; Bittner 1970; Reiner 2010). Police legitimacy and public consent are necessary conditions for the justifiable use of state power: those who are subject to policing must see the police as right and proper (Tyler 2006b; 2011a; Schulhofer *et al.* 2011).

Lying at the heart of crime-control policy are people's motivations to comply with the law. Many criminal policies are premised on the idea that compliance is secured by the presence of formal policing and sanctions for wrongdoers (Tyler 2007; Nagin 1998; Kahan 1999). Social control mechanisms and credible risks of sanction aim to persuade rational-choice individuals that—while otherwise worthwhile—a criminal act is not worth the risk. If offenders are responsive primarily to the risk of punishment, then agents of criminal justice must signal a credible deterrent threat (Hough *et al.* 2010).

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But people's compliance may stem at least as much—if not more—from personal commitment to law-abiding behaviour (Tyler 2006*b*; Robinson and Darley 2004). Based upon the idea that people comply with the law because they believe it is the right thing to do, a normative model of crime control posits that institutions can secure compliance and cooperation by developing policies that generate legitimacy (Tyler 2006*b*; Tyler and Huo 2002). Tyler's procedural justice model of policing states that, when institutions act according to principles of procedural fairness, this helps sustain and strengthen the ability of legal authorities to encourage citizens to regulate themselves. Institutions can thereby avoid the cost, danger and alienation that are associated with policies based on external rules underpinned by deterrent threat (Schulhofer *et al.* 2011).

Yet, the evidence for Tyler's procedural justice model of compliance remains almost entirely United States-based (although see Murphy *et al.* 2009¹). The lack of a robust comparative empirical base means that we do not know whether the central tenets of his normative model of social regulation hold in other contexts. Given a political culture that emphasizes notions of small government and the need to protect citizens from an over-powerful state, US citizens may be especially sensitive to the way they are treated by legal authorities (Tonry 2007: 4). Where other countries have different conceptions of the relationship between individual and state, Tyler's prescription may prove less effective. Even if successful in narrow terms, policies to improve public trust and institutional legitimacy in Europe may not increase public compliance with the law.

In this paper, we present the first test of Tyler's model in England and Wales.² Prior non-US work has explored the link between legitimacy and *cooperation* (e.g. Murphy and Cherney 2012). But, with just one exception,³ no study outside the United States has addressed the link between legitimacy and *compliance*. The current study makes three important contributions to the literature. First, we test the model in the United Kingdom for the first time. Second, we develop a new definition of legitimacy based both on obligation to obey and moral alignment; we consider the importance not just of consent to power, but the 'myth about unity of purpose and values', to use Smith's (2007*a*) expression. Third, we interpret our findings in light of two psychological mechanisms—identification and internalization—and we highlight how different dimensions of legitimacy might shape compliance with the law. Presenting data from a national probability sample of adults in England and Wales, we conclude that people consent to being policed not just when they feel obligated to the police, but also when they believe that the police are operating within an appropriate ethical framework. Partly legitimated by procedural justice, unjustified police action seems to discourage adherence to the law in England and Wales.

Procedural Justice and Normative Compliance

How can crime-control policies increase public commitment to institutions and laws? The processes by which the police exercise their authority lie at the core of Tyler's

¹For non-US work that applies the procedural justice model to public cooperation with legal authorities, see Tankebe (2009), Reisig and Lloyd (2009), Murphy and Cherney (2012) and Jackson *et al.* (2012). For non-US work that applies the procedural justice model to other issues (aside from cooperation and compliance), see Stott *et al.* (2012), Jonathan-Zamir and Weisburd (2011), Ward *et al.* (2011), Kochel (2011) and Bradford (2011).

²An overview of the study has been foreshadowed by two recent publications (Hough *et al.* 2010; Jackson *et al.* in press). Importantly, the current paper not only presents the full findings; it also documents the complete theoretical framework under investigation.

³Murphy *et al.* (2009) linked legitimacy to compliance in an Australian-based study.

procedural justice model (Tyler 2006*a*; 2004; 2011; Tyler and Blader 2000; Tyler and Huo 2002). First, the experience of procedural unfairness—including disrespectful treatment and unfair decision making—erodes feelings of shared group membership with the authority concerned. Group leaders, rules, norms and values symbolically represent the group (Lind and Tyler 1988) and the manner in which group members are treated by their leaders communicates information to the individual about their status within the group (Smith *et al.* 1998). Authorities provide subordinates with identity-relevant and status-relevant information. People then use their evaluations of process to gain self-knowledge and construct their personal identities.

Second, the experience and sense of procedural unfairness harm not only an individual's self-worth, but also the connection between citizens, the police and the rule of law. By treating citizens unfairly, the police's message to them is stark: *you are not valued by society*. Disrespectful treatment and unfair decision making erode the extent to which citizens value the police as group authorities, as well as the subsequent identification they have with the set of rules that legal authorities enforce. This leads individuals to question whether the authorities are in a position to dictate proper conduct.

Third, legitimacy leads individuals to follow rules not because they agree with each specific rule, nor because they expect punishment, but because they accept that it is morally right to abide by the law. Legitimacy is 'a psychological property of an authority, institution, or social arrangement that leads those connected to it to believe that it is appropriate, proper, and just' (Tyler 2006*b*: 375). Thus viewed, legitimacy is the belief that the law and agents of the law are rightful holders of authority; that they have the right to dictate appropriate behaviour and are entitled to be obeyed; and that laws should be obeyed simply because *that is the right thing to do* (Tyler 2006*a*; 2006*b*; cf. Easton 1965).

By linking legitimacy to public compliance, Tyler's work generates a psychology of authorization and consent. The legitimacy of the police and the law leads to a respect for legal guidelines for action that dictates appropriate and personally binding behaviour. These guidelines may not be perfectly aligned with everyone's moral system. We do not always agree with the moral force of each and every law. But legitimacy involves the public recognition that the social order needs a system of laws that generate compliance and respect above and beyond individual preferences (or disagreements) concerning specific laws. When people believe it is morally just to obey the law, so long as they know that a particular act is illegal, then the immorality of illegal behaviour becomes a given. A different sort of morality 'kicks in'.

Normative Commitment and the Influence of Police and Legal Legitimacy

Naturally, there are other reasons why individuals do (or do not) comply with the law (Bottoms 2001). Compliance may be related in large part to habitual or routinized behaviours and orientations. If one complies with the law because such compliance is 'ingrained in everyday life' (Robinson and McNeill 2008: 436), it is unlikely that one will perceive breaking the law as an option when confronted with a situation which, objectively at least, offers such an opportunity. Equally, there will be those who are deterred by the presence of formal or informal mechanisms of social control. Genetic and psychological factors may be an influence; community context and effects might

also be important. All these and other notions have been brought to bear on attempts to explain why people commit crime.

Our focus in this study is on normative motivations to comply with the law. We consider those normative motivations that are most amenable to crime-control policy. For the first time in England and Wales, we test different pathways linking contact, trust, legitimacy and *compliance*. An important part of this paper is to consider the meaning of police legitimacy, so let us start with the context of the study.

Expanding the conceptualization of legitimacy

The Metropolitan Police Force for London was established in 1829 by Robert Peel, based on his much-quoted principles of accountability and policing by consent. While doubts exist as to the primary source of these principles,⁴ their spirit remains important. Phrases like ‘The police are the public and the public are the police’ and ‘The ability of the police to perform their duties is dependent upon public approval of police actions’ (e.g. Reith 1952: 154) speak to a close social connection between the police and what were then ‘subjects of the crown’. As mediators between citizens and the state—so the myth goes—the police were to work closely with the public, to regulate social order and to generate citizen consent. The police were uniformed members of the public. They enforced the law and abided by the law themselves. And they secured the consent of citizens to the law because of their close connection to citizens.

Legitimacy means that citizens recognize the right of the police to exist, to determine authority, to exert power (Tyler 2006*a*; 2006*b*; Jackson *et al.*, 2011; 2012). Yet, given the close connection between the policed and the police, we consider police legitimacy in England and Wales to be best displayed not just as the recognition of power (felt obligation to authority and a corresponding duty to obey), but also the justification of power (through shared moral purpose in the co-production of social order). Legitimacy may thus be instantiated not only in obedience as prerogative, but also in the belief that the police share the values of those they police.

We start, then, with the premise that obligation to obey is not uniquely constitutive of the legitimacy of legal authorities, but part of a broader set of ideas, beliefs and behaviours that individuals exhibit in relation to those authorities that combine to establish (or negate) their legitimacy. Importantly, to say that legitimacy is both (1) obligation to obey police directives and (2) moral alignment with the police is not to say that the police must enforce laws that all citizens agree with if they are to be considered legitimate. By demonstrating moral alignment—through procedural fairness and representing community values—the police can embody a general sense of right and wrong, as well as a commitment to the rule of law. This does not require them to be moralists. Nor does it require them to demonstrate moral superiority. But it does require them to negotiate order in a way that maximizes consent. And such consent may be more readily granted when people feel that the values the police are upholding accord with their own sense of right and wrong.

⁴Lentz and Chaires (2007) suggest that their attribution to Peel may be the ‘invention’ of twentieth-century textbooks.

Multiple pathways to compliance via social influence

We make one further conceptual distinction in the study that follows. We distinguish between obligation to obey the police and obligation to obey the law. Seen from one perspective, the police are powerful symbols of law enforcement. If police legitimacy resides most importantly in public judgments that it is right to follow the directives of the police regardless of their content—and if it is accepted that the police powerfully represent the law—then the link between obligation to obey the police and obligation to obey the law seems unproblematic. Indeed, they are almost the same thing.

But police legitimacy and the legitimacy of the law may lack such a direct congruence (Murphy and Cherney 2012). While the police are strongly associated with the law, they also conjure up powerful images of social order and stability (Loader and Mulcahy 2003). Carefully built up over the century to the 1960s, the authority of the British police may rest in part on sources of public affiliation and respect removed from narrow legalism (Girling *et al.* 2000; Smith 2007*b*). Here, as in the United States and elsewhere, the *practice* of policing may be as often concerned with maintaining order as it is with enforcing the law; indeed, officers frequently ignore illegal behaviour, particularly if acting upon it risks significant disruption or the breakdown of critical relations. The very nature of police discretion may militate against the total identification of police with law.

So how do our two distinctions (first, between obligation to obey the police and moral alignment with the police and, second, between obligation to obey the police and obligation to obey the law) combine to form a procedural justice model of compliance for England and Wales? Figure 1 specifies a number of pathways to compliance. Consider pathway A. *Instrumental compliance* is where an individual responds in a self-interested way to policing, whether to gain a reward or avoid punishment.⁵

Next consider pathway B. Individuals here comply with a given law because they believe a given act (proscribed by law) is wrong. They might refrain from behaving in a certain way—even if that act was suddenly made *legal* or they would benefit personally—because their moral principles lead them to comply. They might equally engage in an *illegal* act if they see the behaviour as morally correct (or at least morally neutral).

Pathway C keeps with the normative, but the focus moves toward the morality of obeying the law simply because it is the law. This is not the moral belief about the right or wrong of a particular law, but a more general *internalized* belief that it is morally right to obey the law (Tyler 2006*a*; 2006*b*). Reflecting the idea that a person authorizes an authority to determine appropriate behaviour within some situation, Kelman and Hamilton (1989) refer to legitimacy as ‘authorization’. A person feels obligated to follow the rules that authority establishes; he or she *internalizes* the value that it is morally just to obey the law and authorization obviates the necessity of making judgments or choices. The authorization of actions by authorities thus carries automatic justification for them. Believing that it is the right thing to do to respect legal rules precludes the possibility of seeing crime as an option (cf. Wikström 2006). And inasmuch as such orientations are embedded in the routines of everyday life, one does not need to think about the morality of the specific act or the likelihood of getting caught.

⁵For more nuanced accounts of the interplay of moral and instrumental motivations, see Nagin and Paternoster (1993), Pogarsky (2002), Jacobs (2010), Kroneberg *et al.* (2010) and Matsueda *et al.* (2006).

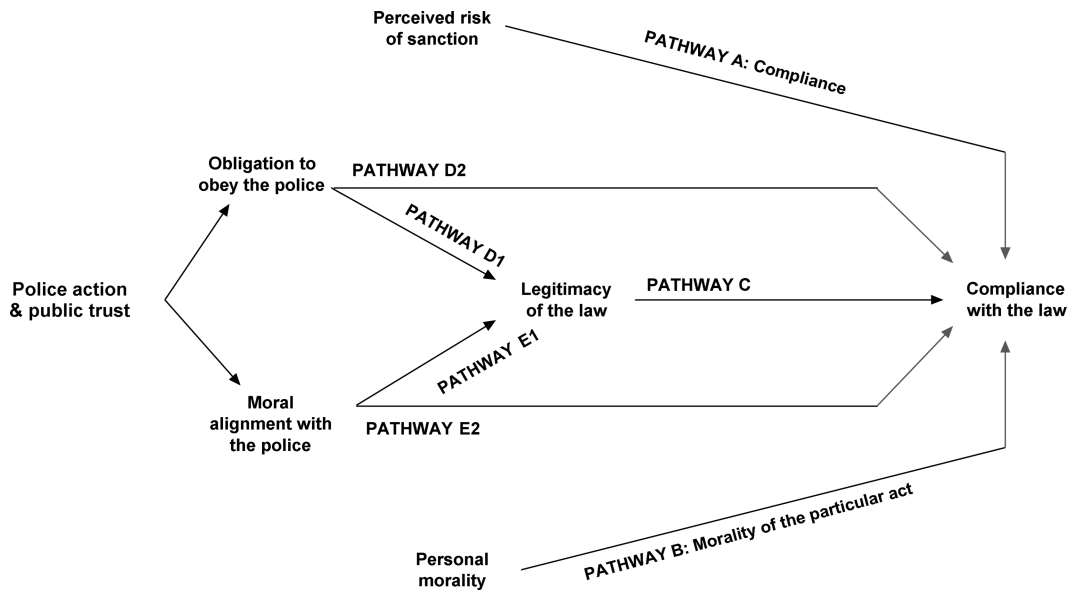


FIG. 1 Pathways to compliance with the law

Pathways D1 and D2 turn our attention to people's feelings of obligation to the police and their recognition of police authority. D1 is the pathway from felt obligation to obey the police (via felt obligation to obey the law) to law-abiding behaviour. This pathway is premised on the idea that authorization of the police to dictate appropriate behaviour leads to authorization of the law to dictate appropriate behaviour. People then allow the law to influence their behaviour, with the duty to obey the police feeding through to a corresponding duty to conform to the expectations of the law (Tyler 2006a).

By contrast, pathway D2 is the direct path from obligation to obey the police to law-abiding behaviour. Here, authorizing the police to dictate appropriate behaviour shapes one's compliance (separate from any effect of authorization of the law to dictate appropriate behaviour). Irrespective of whether one feels obligated to obey the law, people comply because obligation to this particular authority figure exerts influence.

Pathways E1 and E2 refer to moral alignment, with the link going from moral alignment to compliance via legal legitimacy in pathway E1. The proposition here is that people believe that laws are binding (even if they disagree with the specifics of a given law) in part because they feel morally aligned to the most visible agent of criminal justice: when people feel a sense of moral solidarity with the police, their sense of identity moves from the individual to the group, and they *identify* with the group that the police represents (Sunshine and Tyler 2003a; Jackson and Sunshine 2007). Activating the importance of group values and their salience as guides to behaviour, one group value is the belief that it is right and proper to obey the law. *Moral identification* with the police thus leads to the *internalization* of the value that is morally just to obey the law (cf. Aquino *et al.* 2009; Hardy and Carlo 2005; Aquino and Reed 2002; Reed and Aquino 2003).

Pathway E2 refers to the direct effect of moral alignment on compliance. The idea here is that moral alignment with the police shapes compliance not through the belief that it is

morally just to obey the law, nor because of the belief that the particular act is wrong, but because people morally identify with the police and the group that the police represent. Such self-perception transitions goals or motives from the individual to the group, placing greater weight on the outcomes of the group as a whole (Blader and Tyler 2009; Tyler and Blader 2003; Tajfel and Turner 1986; Turner 1975; Turner *et al.* 1979). *Identifying* with the group then generates role and expectation involvement. People accept a reciprocal-role relationship (the law-abiding citizen who does not commit everyday crimes) and they feel a corresponding need to meet the expectations of that role (Kelman 2006).

Finally, central to all the possible pathways involving police legitimacy (D1, D2, E1 and E2) are the encounters that people have with the police (Skogan 2006; Tyler 2006*a*; Bradford *et al.* 2009; Gau and Brunson 2010; Myhill and Bradford 2011; Jackson *et al.* 2012). We predict significant effects of contact on trust in the police, with knock-on effects on legitimacy and compliance. Differentiating between positively received contact and negatively received contact, we address Skogan's (2006) idea of asymmetry in the impact of personal contact, assess the extent of asymmetrical effects on trust and trace pathways from contact to compliance with the law.

Before we turn to the study, it is important to be clear about the specific crimes we investigate. Our survey asked individuals whether they had recently bought stolen goods, illegally disposed of rubbish or litter, vandalized public property, shoplifted or committed a traffic offence. We assume that these 'everyday crimes' straddle the line between more serious crimes and those which, according to Karstedt and Farrall (2006: 1011), 'fall into a grey zone of legality and morality'. The procedural justice model may not apply to so-called 'hard-core' criminals and more serious crimes. But it may apply to the more 'low-level' behaviours that each of us may or may not be tempted by or engage in.

Method

A nationally representative survey of adults in England and Wales was conducted between June and August 2009 as part of a randomized controlled trial carried out by the National Policing Improvement Agency into the impact of crime and policing information on public perceptions (see Quinton 2010). To maximize the value derived from the study, questions on procedural justice were included to the end of the interview for respondents in the control group (the study had three experimental groups, with each group making up around one-quarter of the sample), whose interviews would have otherwise been rather short. For details of sampling, see Coleman *et al.* (2009). The final achieved sample consisted of 7,434 respondents aged 16 and over (yielding a response rate of 62 per cent), of which 25.7 per cent constituted the control group. Half of the control group was fielded the entire body of the current questions about contact with the police, trust, legitimacy and compliance. The sample available for the current analysis was 937 (12.6 per cent of the full sample, i.e. half of a quarter, or one-eighth). The study constitutes a major test of Tyler's model, albeit using a random sub-sample of a larger representative sample survey.

Interviews were conducted face to face in respondents' homes using Computer Assisted Personal Interviewing (CAPI). Our measures largely mirror those of Tyler and colleagues (Sunshine and Tyler 2003*b*; Tyler 2006*b*; see also Reisig *et al.* 2007; Gau 2011). A full list of question wordings and factor loadings is contained in the Methodology

Appendix. Since it was likely that measures of personal morality and compliance behaviour would be affected by social desirability bias, we made provision for questions relating to those two concepts to be completed via Computer Assisted Self-Interviewing (CASI), with responses entered directly. Responses were entered directly into the computer, out of sight of the interviewer.

Analytical strategy

Using structural equation modelling (SEM) to investigate the relationships between latent variables, we implement full information maximum likelihood estimation to deal with missing values. Our models contain both categorical and continuous manifest and latent variables, so different types of regression are used in different parts of the fitted model. Because compliance with the law and personal morality are dichotomous and manifest variables, probit regression is used in that part of the fitted model. Because males and younger people tend to commit more crimes than females and older people, all models control for gender and age. This does not mean that we are investigating whether the model differs for gender and age groups (we are not testing interaction effects, for example). Rather, we want to adjust for these two covariates to reduce the possibility that associations between trust, legitimacy and compliance do not, to some degree, act as a proxy for gender and age differences.⁶

Our analytical strategy seeks to clarify what can be said about the correlations between contact, trust, legitimacy and compliance in our sample. By collecting data from a representative sample, we are trying to explain variation in self-reported compliance, legitimacy, trust and contact with the police. Modelling patterns of trust, legitimacy and compliance, evidence for one rather than another pathway emerges when particular patterns of associations emerge. The direction of the arrows in the SEM is not meant to imply that we have *demonstrated* causality; we infer from our sample that these pathways of correlations exist in the general population. We recognize the need for longitudinal or experimental research to provide more robust tests of causation—but that is for future study.

Results

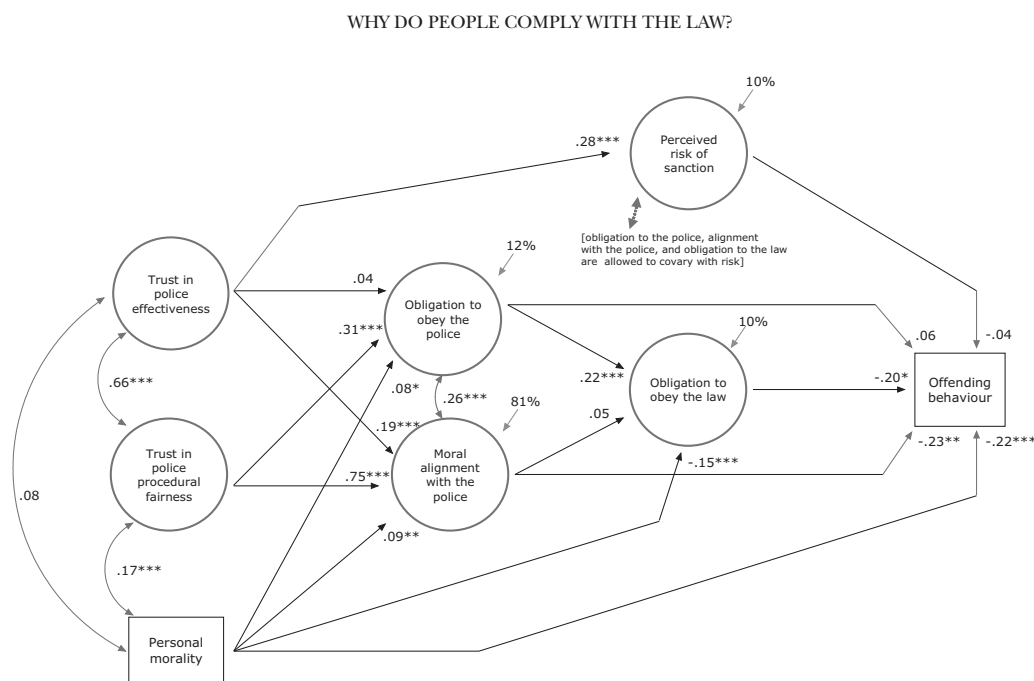
Model 1: Everyday crimes without contact with the police

We tested the model of compliance using measures of non-compliance involving everyday crimes—buying stolen goods, illegally disposing of rubbish, vandalism and shoplifting.⁷ Figure 2 presents the findings. Because the model places few constraints on paths between latent constructs, the adequate fit of the model (CFI τ 0.95; TLI τ 0.95; RMSEA ν 0.06; see Hu and Bentler 1999) refers mostly to the measurement models (Mulaik *et al.* 1989; McDonald and Ho 2002). Factor loadings are high in every case.

Is there evidence for instrumental motivations to comply with the law? According to Figure 2, the answer is *no*. Consider pathway A. This is the link from (1) trust in police

⁶We do not control for ethnicity because we want to control only for those covariates that are typically thought to be strongly correlated with criminal behaviour.

⁷Findings on self-reported compliance with traffic regulations—which are distinctively different—will be reported elsewhere.



Structural equation modeling with categorical indicators and probit regression for committing crime (Mplus 5.2).
 Measurement models not shown for visual ease.
 Perceived risk of sanction is allowed to co-vary with obligation to obey the police, moral alignment, obligation to obey the law and personal morality.
 All latent variables are regressed on to gender and age.
 Standardized coefficients. Chi-square 496, df 103, $p < .0005$. CFI 0.97; TLI 0.98; RMSEA 0.06.
 * significant at the 5% level, ** significant at the 1% level, *** significant at the 0.1% level.

FIG. 2 A model of the antecedents of compliance with the law for everyday offences

effectiveness, to (2) perceived risk of sanction, to (3) offending behaviour. Trust in police effectiveness is a significant predictor of people's perceptions of the risk of being caught (if they were to commit an 'everyday crime'). Yet, the pathway from perceived effectiveness to compliance breaks down, precisely in the link between perceived risk of sanction and offending behaviour. Thinking it likely that one would be caught is not a significant predictor of reporting one has committed one of the crimes.

By contrast, personal morality is a significant predictor of compliance. Providing empirical support for pathway B, we find that the more people believe that acts like buying stolen goods are wrong, the less likely they are to say that they have done these acts in the past year. Pathway C is also supported by the data. Felt obligation to obey the law explains some variation in compliance, net of other factors in the model. The more legitimacy that individuals invest in the law, the less likely they are to report having committed the particular offences. To suggest that weak obligation to obey the law *causes* non-compliance would be excessive. But the observed association is consistent with the idea that legal legitimacy involves *internalization* of the value that it is right to obey the law, which then leads to the authorization of the law to dictate appropriate behaviour.

The pathway from obligation through legal legitimacy to compliance is statistically significant (D_1). Procedural justice may thus strengthen public *internalization* of the value that it is right to obey the police, which may then shape compliance with the law via the legitimacy of the law. When individuals authorize the police to dictate appropriate behaviour, they also tend to authorize the law to dictate appropriate behaviour and

thus to obey the law. Pathway D_2 receives less empirical support. There is no direct effect of obligation on compliance, net of other factors in the model. In other words, feeling one should obey the police is not associated with compliance behaviour.

E_1 also does not receive empirical support. Conditioning on obligation to obey the police, people who feel morally aligned with the police are no more likely to feel obligated to obey the law than people who do not. Pathway E_2 is, however, supported by the data. People who feel morally aligned with the police are more likely to comply with the law than people who do not. Net of personal morality and felt obligation to obey the police and law, the more someone identifies with the police, the more likely they are to comply with the law. When people identify with important authorities of a group, they may be especially likely to think that the interests of the group are their own personal interests; identifying with moral exemplars may also lead them to internalize the moral standards of the group.

What role does procedural justice play? Starting from the left (Figure 2), we find that trust in police procedural fairness is a strong predictor of moral alignment with the police, and a moderate predictor of obligation to obey the police. By contrast, trust in police effectiveness is only a weak predictor of moral alignment and not a significant factor in explaining variation in obligation to obey. When police provide individuals with appropriate status information (through fair procedures and respectful personal treatment), they seem more likely to perceive the police to be legitimate. They are also more likely to comply with the law, with the effect flowing largely through moral alignment (Figure 2).

Model 2: Everyday crimes and contact with the police

We also tested the model adding public contact with the police. Respondents were asked whether they had been approached or stopped by the police in the last 12 months and whether they had contacted the police in the last 12 months. If they had, they were then asked how satisfied or dissatisfied they were with how the police handled the matter. We created four dummy variables, indicating whether an individual had experienced a satisfactory or dissatisfactory police-initiated or public-initiated contact.

The model fits well. Regressing trust onto contact we find that negatively received encounters are associated with lower levels of trust in effectiveness and procedural fairness, and that positively received public-initiated encounters are associated with slightly higher levels of trust in procedural fairness (Table 1). A particular strength of this model is its ability to trace pathways from contact to compliance (via trust and legitimacy). Effect decomposition indicated that negatively received contact of both sorts was associated with higher odds of committing an everyday crime. Of the 0.15 total effect ($p = 0.013$) of public-initiated and negatively received contact on self-reported crime, most of it (0.10, $p = 0.026$) was via trust in procedural fairness and moral alignment with the police. Of the 0.20 total effect ($p = 0.027$) of police-initiated and negatively received contact on self-reported crime, most of it (0.16, $p = 0.031$) was via trust in procedural fairness and moral alignment with the police. Negative contact with the police thus predicts higher odds of committing an 'everyday crime', primarily (seemingly) via decreased levels of trust in police procedural fairness and moral alignment with the police.

TABLE 1 *Regressing trust in the police on contact with the police*

Pathway from	To	Coeff.	SE	Coeff./SE	P-value
Public-initiated, positively received contact	Trust in police effectiveness	0.08	0.09	0.89	0.37
Public-initiated, negatively received contact		-0.47	0.12	-3.84	<0.01***
Police-initiated, positively received contact		0.03	0.12	0.23	0.82
Police-initiated, negatively received contact		-0.55	0.21	-0.26	0.01**
Public-initiated, positively received contact	Trust in police procedural fairness	0.16	0.08	1.93	0.05*
Public-initiated, negatively received contact		-0.52	0.12	-4.43	<0.01**
Police-initiated, positively received contact		0.09	0.11	0.83	0.41
Police-initiated, negatively received contact		-0.79	0.19	-4.15	<0.01**

Note: standardized coefficients estimated within a broader structural equation model (extension of Figure 2).

* significant at 5% level, ** significant at 1% level, *** significant at 0.1% level.

Limitations

It is, of course, reasonable to ask whether quantitative surveys such as that used here are truly able to capture the phenomena of interest. Have we really, and successfully, measured latent variables representing trust in the police or the extent of legitimacy granted to it? Can self-reported measures of lawbreaking really be treated as valid indicators of preparedness to break the law?

We acknowledge that quantitative sample surveys are but snapshots of complex realities. We recognize that construction of theories *ex post facto* from descriptive surveys would be highly questionable in this field. In our defence, however, the situation is very different if, as in the current study, one sets out to test a set of hypotheses specified in advance. If relationships proposed by *a priori* hypotheses do indeed turn out to exist, this should provide at least some confidence in any conclusions drawn from them.

Yet, even if we succeed in establishing correlations between the constructs of interest, what causal claims can we make when using cross-sectional data? It is almost always possible to construct an alternative account of the relationships observed. It is entirely plausible, for example, that people who hold the police legitimate are more likely, on this basis, to judge officers' behaviour to be procedurally fair. Our response to this issue is twofold. On the one hand, we note again that research that examines hypotheses specified in advance is generally more persuasive than approaches that simply find explanations after the event for data patterns. On the other hand, we would argue that the study presented here should be just the first step in a research programme that goes on to encompass longitudinal or experimental research designs. Our current purpose is to establish basic correlations supported by theory—it is for future work to establish what, if any, causal processes and directions lie behind these correlations.

A further issue facing survey research in criminology is that of commensurability with other studies in the field. Much criminological work is focused on hard-to-reach groups who are likely, for all the well-known reasons, to be poorly represented in large-scale sample surveys. The processes we described above might apply to the 95 per cent of the population such surveys represent. But what of the excluded 5 per cent, who may be disproportionality non-compliant? One might argue that, for this 'offending population', no amount of procedural fairness will alter their behaviour. Yet, there are studies of such populations that demonstrate fair treatment is important to them and is associated with

compliance. Liebling and colleagues' work in prisons (Liebling 2004; Liebling *et al.* 2010; see also Sparks *et al.* 1996) has shown that fair and respectful treatment of inmates by staff leads to more stable and orderly regimes. Outside prisons, Paternoster *et al.* (1997) found that procedural fairness on the part of police officers when making arrests predicted reduced recidivism and, more generally, Sherman's (1993) defiance theory predicts that deterrent strategies could prove counterproductive when applied in procedurally unfair ways. While we should be realistic in relation to the role of procedural justice in the face of heavy, entrenched offending, these prior studies do suggest that, as for the general population, police fairness (or unfairness) can play a role in altering or modulating the behaviour of the individuals involved.

Conclusions

We have presented in this paper the first test of a procedural justice model of *compliance* in England and Wales. Our contributions to the literature are threefold. First, we have outlined a new and expanded conceptualization of legitimacy. We have found evidence for two key pathways from trust to legitimacy to compliance. One is from the procedural fairness of the police to compliance, via citizen's moral alignment with the police. The other is via citizens' obligation to obey the police and law. We have focused on those 'everyday crimes' that may be committed by 'those who think of themselves as respectable citizens, and who would definitely reject the labels of "criminals" and "crime" for themselves and their action' (Karstedt and Farrall 2006: 1011). Our findings suggest that, when people feel obligated to obey the police and morally aligned with officers, they are more likely to comply with the law.

We thus demonstrate the empirical value of a twin-pronged conception of legitimacy. We show the utility of differentiating between perceived obligation and the perception of shared moral values (i.e. moral alignment), both of which seem to be important in motivating compliance with the law. Psychologists have traditionally recognized that internalization, namely the process by which people take on values as their own, provides an important basis for compliance with rules. Obligation to obey the police and moral alignment with the police both involve internalization—and internalization can involve obligations or moral principles or both. But Kelman (2006) also points to the importance of identification with authorities as a basis for deference. Such identification reflects an emotional connection based upon perceived shared values and purposes (moral alignment) and a common definition of social roles and expectations. Identification and internalization may thus be two important social psychological mechanisms linking legitimacy to compliance behaviour.

Second, our study highlights the importance in England and Wales of procedurally fair policing. We have presented evidence that procedural justice explains significant variation in compliance, through its conditional association with obligation to obey both the police and law, as well as with moral alignment with the police. The police are the most visible agent of social control, the most high-profile agency in a justice system empowered to define right and wrong and, if officers wield their authority in unfair ways, it not only damages people's sense of obligation to obey their directives (their authority in the normal sense of the word); it also affects public perceptions of their moral authority. Because the police are powerfully linked to—although not synonymous with—the

law, police unfairness also undermines people's sense that the law defines appropriate behaviour. If the police are seen to act in ways in conflict with social norms around fair treatment and decision making, this generates a powerful cynicism: 'If the police can behave unfairly, so can I.' By contrast, exercising authority via fair procedures seems to build normative commitment to the police and enhances compliance with the law.

Finally, we conclude with some thoughts on two idealized and contrasting models of crime-control policy. In recent decades, the exercise of legal authority to obtain compliance has become primarily associated with the use of threat and punishment, aimed at deterring people from engaging in criminal behaviour (e.g. Kahan 1999; Nagin 1998). Irrespective of the type of case involved, the traditional means of obtaining compliance is via strategies of deterrent threat. The argument driving this perspective is threefold. Fear of possible future punishment leads to compliance with the law; risk calculations are partly shaped by both the anticipated likelihood of punishment and by judgments about its severity; and the focus is (and should be) on the power of legal authorities and institutions to shape behaviour by threatening to deliver (or by actually delivering) negative sanctions for rule breaking. 'Deterrence' or 'social control' models of crime control, based on such thinking, currently dominate law and public policy.

By contrast, normative models of crime control are premised on the idea that the best way for the criminal justice system to influence compliance is to communicate procedural justice and legitimate authority (leading people to comply with the law because they want to). Our findings speak to the centrality of normative factors in shaping public behaviour in relationship to the police. These include not only the sense of obligation to obey the police and the law, but also the judgment that the police act in ways consistent with people's views about what is right and wrong. These value-based factors motivate compliance; they highlight the importance of a broader range of normative motivations than is encompassed with the concept of legitimacy as traditionally defined (felt obligation and trust). It follows that English and Welsh justice institutions should design policies that promote normative modes of compliance and cooperation that are both more stable and more sustainable in the long run.

An interesting feature of the procedural justice approach is that it suggests police legitimacy can be enhanced via the everyday practice of policing. In line with some of the ideas behind community policing programmes, it seems that improving the quality of mundane officer–citizen encounters may reap significant rewards in terms of legitimacy and, perhaps, compliance with the law. Equally notable is that perceptions of police fairness are more predictive of compliance in our model than perceptions of effectiveness. While it would be wrong to suggest that people do not care about the effectiveness of the police, they appear to value fair policing rather more. This important finding sits somewhat uncomfortably with statements both from the current and the previous administration that privilege instrumental aims of policing above all else (e.g. Home Office 2010). While there is no necessary contradiction between these two understandings of policing—one prioritizing the relationship between police and citizen and the other 'crime-fighting' per se—more of the latter may in practice imply less of the former. Our findings suggest the possibility that overemphasis on crime fighting could result in more confrontational and negative contacts between police and citizens, and thus prove counterproductive.

In contrast to the promotion of crime fighting as *the* defining feature of police work—based often on an 'us-and-them' view of offending and non-offending populations

(Casey 2008)—a value-based perspective on human motivation suggests the importance of developing and sustaining a civic culture in which people more willingly abide by the law because they feel that legal authorities are legitimate and ought to be obeyed. For this model to work, social institutions such as the police must look beyond narrow instrumental aims towards fostering and maintaining appropriate values. Psychological social capital must be created. Political scientists refer to this set of values as a ‘reservoir of support’ for government and society (Dahl 1956). But, however labelled, a value-based model is consistent with a social psychological understanding of how authorities can effectively regulate citizen behaviour, maintain social order and promote an effective, well-functioning society—by developing and maintaining a culture of supportive social values that will be internalized by the citizenry (Tyler 2011*a*). Such values include feelings of obligation and responsibility. But they also include judgments about the degree of moral alignment that people feel with the police, the courts and the law. And they include broader types of social connections to society, such as identification with authorities and institutions. All of these values may provide a more just basis for the effective operation of the legal system.

Funding

National Policing Improvement Agency.

ACKNOWLEDGEMENTS

We would like to acknowledge the role played by NatGen in designing the sampling strategy and administering the survey, and to thank Aziz Huq and Avital Mentovich for insightful comments and suggestions. The first author would also like to thank New York University’s Department of Psychology and Cambridge University’s Institute of Criminology for hosting him while writing this paper.

Methodology Appendix

Compliance with the law

This part of the interview was self-completion. Respondents were given the laptop; interviewers left the room; and respondents indicated how often during the past year they had committed any of five criminal offences (response options were ‘never’, ‘seldom’, ‘sometimes’ and ‘often’):

- 94 per cent reported never having bought something that they thought might be stolen;
- 95 per cent reported never having illegally disposed of rubbish or litter (‘fly tipping’);
- 66 per cent reported never having committed a traffic offence;
- 99 per cent reported never having vandalized public property; and
- 98 per cent reported never having taken something from a shop without paying for it.

We used latent class analysis to combine answers to these five questions into one dichotomous variable that indicated whether or not someone fell into the ‘non-compliance’ group (please contact the first author for more details). The model allocated 93 per cent of the sample into class 1 (very unlikely to report having committed any

of the offences) and 7 per cent of the sample into class 2 (likely to admit occasionally committing one or more of the offences). A dichotomous variable was then derived that identified the modal category. This categorized each respondent into one of two groups: individuals were either ‘compliant’ or ‘occasionally non-compliant’.

Personal morality

Respondents were asked ‘how wrong’ five offences were. Response options were ‘not wrong at all’, ‘not too wrong’, ‘somewhat wrong’ and ‘very wrong’. Percentages saying ‘very wrong’ were:

- 86 per cent for buying stolen property;
- 86 per cent for disposing of rubbish;
- 62 per cent for committing a traffic offence;
- 96 per cent for vandalizing public property; and
- 96 per cent for shoplifting.

We created a binary variable using latent class analysis: 81 per cent of the sample fell into class 1 (believing most of these behaviours were ‘very wrong’) and 19 per cent of the sample fell into class 2.

Perceived risk of sanction

Respondents were asked how likely they thought it was that they would be caught and punished (by being fined and/or arrested) if they committed any of the five crimes. Response options were ‘very unlikely’, ‘fairly unlikely’, ‘fairly likely’ and ‘very likely’. Answers were evenly distributed across the response options. The percentages of respondents who thought that it was unlikely that they would be caught and punished if they committed each of the following offences were:

- 44 per cent for buying stolen goods;
- 51 per cent for illegally disposing of rubbish or litter;
- 27 per cent for traffic offences;
- 36 per cent for vandalism vandalized public property; and
- 23 per cent for shoplifting.

Confirmatory factor analysis indicated a reasonable fit for a one factor model ($\chi^2 = 41$, $df = 5$, $p < 0.001$; CFI = 0.98; TLI = 0.97; RMSEA = 0.08, 90 per cent CI 0.06–0.11). The RMSEA was above the standard cut-off point of 0.06. Appropriate cut-off points for approximate fit indices have, however, generated debate (see Jackson *et al.* 2009). Mindless use of cut-offs is tempting. But, on this matter, things are rarely as simple as binary decision rules.

Police legitimacy

We measured obligation to obey using a three-item scale focusing on people’s expressed intention to do what the police, even if one is not in agreement with the decisions or actions. Appendix Table 1A provides the question wording. Moral alignment was

Appendix Table 1A: Confirmatory Factor Analysis testing the dimensions of trust and legitimacy

	Trust in the police		Police legitimacy	
	Model 1	Model 2	Model 3	Model 4
	1 factor	2 factors	1 factor	2 factors
Trust in police effectiveness				
How effective do you think the police in your local area are at:				
Solving crimes	0.77	0.86		
Preventing crimes	0.80	0.86		
Keeping order on the streets	0.69	0.77		
Responding to emergencies	0.60	0.69		
Trust in police procedural fairness				
To what extent do you agree with these statements about the police in this area?				
They would treat you with respect if you had contact with them	0.80	0.83		
They are helpful	0.86	0.88		
They make decisions upon the facts	0.84	0.85		
They explain their decisions to the people they deal with	0.83	0.85		
They make fair decisions when handling problems	0.89	0.91		
Moral alignment with the police				
To what extent do you agree with these statements about the police in this area?				
They usually act in ways that are consistent with my own ideas about what is right and wrong	0.85			0.91
They can be trusted to make decisions that are right for the people in this neighbourhood	0.85			0.91
My own feelings about what is right and wrong usually agree with the law	0.45			0.55
Perceived duty to obey police				
Please tell me if you agree or disagree with each of these statements				
You should do what the police tell you, even if you disagree			0.76	0.84
You should accept decisions made by the police, even if you think they are wrong			0.78	0.86
You should do what the police tell you to do, even if you don't like the way they treat you			0.71	0.79
Factor covariance		0.66		0.40
Chisquare	624.9	167.2	523.1	9.7
p	<0.005	<0.005	<0.005	0.08
CFI	0.91	0.98	0.87	1.00
TLI	0.93	0.98	0.82	1.00
RMSEA	0.21	0.10	0.33	0.03

Source: National Police Improvement Agency Survey 2009.

captured by two questions concerning whether the police act in ways consistent with respondents' views of what is right and wrong and whether the police can be trusted to make decisions that are right for respondents' neighbourhoods (cf. Sunshine and Tyler 2003a: 156–7). In order to assess scaling properties—and examine whether these items combined to reflect two latent variables or one latent variable—we tested two confirmatory factor models (Table 1A). The two-factor model fitted the data well, indicating that these constructs were empirically distinct (even if correlated).

Trust in the police

Trust in *police procedural justice* was measured by asking about whether they believed that the police are friendly and approachable, helpful, use fair processes when dealing with people, make informed, fair decisions and take the time to explain them. *Trust in police effectiveness* was measured using a four-item scale asking people how effective they thought their local police were at solving crime, preventing crime, keeping order on the streets and responding to emergencies. Table 1A examines the scaling properties. The two-factor model, which differentiates between fairness and effectiveness, fitted the data well.

Obligation to obey the law

A three-item scale adapted from Sampson and Bartusch (1998) asked people to agree or disagree with value statements relating to whether 'laws are made to be broken', application of the harm principle ('it's ok to do anything you want as long as you don't harm anyone') and whether 'to make money there are no right or wrong ways anymore, only easy and hard ways'. Between 80 and 90 per cent of respondents disagreed or strongly disagreed with these statements. To test the empirical distinctiveness and scaling properties of obligation to obey the law, we conducted a confirmatory factor analysis that included (1) obligation to obey the law, (2) obligation to obey the police, (3) moral alignment with the police and (4) intentions to cooperate with the police. Findings indicated a good fit for a four-factor model ($\chi^2 = 75$, $df = 38$, $p < 0.001$; CFI = 0.99; TLI = 0.98; RMSEA = 0.03, 90 per cent CI 0.02–0.04), with appropriate factor loadings for all measurement models.

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